

26CV02415 Erika E. Szell v. Housing Authority of the City of Santa Barbara, et al.

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-06-24

Motion: Verified Petition for Writ of Mandate

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Civil Law & Motion

Hearing Date / Time

Wed, 06/24/2026 - 10:00

Nature of Proceedings

Verified Petition for Writ of Mandate

Tentative Ruling

For Petitioner Erika E. Szell: Self represented

For Respondents Housing Authority of the City of Santa Barbara and Rob Fredericks: James Burns, Burns Law Group

RULING

For the reasons set forth herein, Petitioner Erika E. Szell's petition for writ of mandate is continued to September 2, 2026, at 10 am. On or before July 29, 2026, Petitioner shall file and serve the record of the administrative proceedings described or at issue in the petition. To the extent any party contends that Petitioner is not required to produce an administrative record, that party shall, on or before July 29, 2026, file and serve a supplemental brief explaining, with reasoned argument, why a record

of administrative proceedings is not required to be filed in this case. The parties shall not, apart from the administrative record or supplemental briefing described herein, file any further papers in support or in opposition to the petition.

Background

Petitioner Erika E. Szell (Petitioner), who is a neurodivergent individual with a Doctor of Nursing Practice, alleges in these proceedings that they have been a tenant at 7210 Davenport Road in Goleta, California (the Residence) since July 19, 2017. (Petition, ¶¶ 8, 17 & 19.) Throughout Petitioner's tenancy at the Residence, Petitioner was the primary occupant, and a co-tenant while Petitioner's mother, Susanna M. Vadas (Vadas), lived at the Residence. (Petition, ¶ 19.) On March 16, 2021, Petitioner and her brother were designated as Durable Powers of Attorney for financial and medical decisions for Vadas. (Petition, ¶ 20.)

In 2022, Vadas underwent a series of life threatening medical events, including breast and colon cancer which required multiple surgeries. (Petition, ¶ 21.) In response to Vadas' declining health, Petitioner decided to forgo a professional nursing salary to provide 24 hour specialized care to Vadas. (Petition, ¶ 22.) Petitioner transitioned to the County of Santa Barbara (the County) In-Home Supportive Services (IHSS) program, the primary purpose of which is to enable elderly and disabled individuals to remain safely in their own homes as an alternative to out of home care. (Petition, ¶¶ 22 & 34.) Petitioner earned approximately \$17 per hour to remain in the Residence as a caregiver, mandatory medical interpreter, and advocate for Vadas, who was a Hungarian immigrant who lacked English proficiency and medical literacy. (Petition, ¶¶ 22-23.)

In June 2022, Petitioner moved Vadas into the Residence. (Petition, ¶ 24.) During the transition period, Petitioner made full rent payments on the Residence while also paying the subsidized rent on Vadas' apartment until in or around February 2023, when the Housing Authority of the City of Santa Barbara (the Housing Authority) completed the voucher transfer to Petitioner's address. (Ibid.) Although the County recognized Petitioner as the provider of "Protective Supervision"—the highest level of care authorized under the IHSS program—the Housing Authority used this caregiver designation to reclassify Petitioner. (Petition, ¶ 25.) Respondents ignored Petitioner's established status as a primary leaseholder and daughter, instead forcing her into a "Live-in-Attendant" classification that effectively stripped Petitioner of her familial rights to housing. (Ibid.)

In January 2023, having been recently terminated from a 17-year nursing career while on modified duty for work-related injuries and facing a permanent inability to return to bedside nursing due to severe cervical stenosis, Petitioner was in a state of extreme financial and physical vulnerability and crisis regarding her future employment and housing stability. (Petition, ¶ 26.) Given this state of distress and lack of expertise in housing regulations, Petitioner relied entirely on Respondents to act in good faith. (Ibid.)

During the portability transfer of the voucher in January 2023, Respondents presented Petitioner with a "Live-in-Attendant" agreement (the 2023 Agreement) which required Petitioner's signature as a condition of the transfer. (Petition, ¶ 28.) Respondent's "Live-in-Attendant" classification of Petitioner incorrectly assumed that Petitioner, who was a medically trained, bilingual family member whose presence prevented the admission of Vadas into a skilled nursing facility, was a generic, replaceable employee. (Petition, ¶¶ 28 & 37-38.) This reclassification of a 48-year family member—representing Petitioner's lifelong relationship with the "Head of Household"—as a non-family employee was an arbitrary administrative action which ignored the household's actual income and Petitioner's established legal status as a long-term co-occupant with 6 years of residency. (Petition, ¶ 28.)

In presenting the waiver, Respondents also failed to disclose that the reclassification of Petitioner would result in the total forfeiture of Petitioner's succession rights under 24 Code of Federal Regulations part 982.315. (Petition, ¶ 29.) Respondents also did not provide an explanation of the legal distinction between a "Family Member" and a "Live-in-Attendant," nor did they disclose that the household remained eligible for "Family Member" status based on a total income of approximately \$68,000. (Ibid.)

On April 29, 2024, Petitioner was appointed guardian ad litem on behalf of Vadas, and on May 10, 2024, Vadas' incapacity was formally determined by this Court. (Petition, ¶¶ 23 & 30.)

In late 2024, after the passing of Vadas, Petitioner contacted the Housing Authority to inquire if any mechanism existed to maintain her housing stability. (Petition, ¶ 53.) During this interaction, Petitioner explicitly informed the Housing Authority's representative of her neurodivergence (autism). (Ibid.) Despite being on notice of Petitioner's disability and her state of bereavement, Respondents failed to initiate an interactive process or disclose the existence of "Remaining Family Member" succession rights under 24 Code of Federal Regulations part 982.315. (Ibid.)

Petitioner did and could not discover the existence of vested succession rights at the time of the 2023 reclassification or the 2024 inquiry because Respondents actively suppressed that information. (Petition, ¶ 54.) Respondents also misled Petitioner by suppressing knowledge of her property rights and failing to accommodate her neurodivergence following the death of her mother. (Petition, ¶ 43.) Respondents were aware that Petitioner was moving Vadas in for high-intensity medical support, yet they failed to disclose the "Family Member" status that was legally available to Petitioner. (Ibid.)

On July 23, 2025, Petitioner was appointed the administrator of Vadas' estate with full authority to manage the possessory interests and legal claims of Vadas. (Petition, ¶ 31.) All statutory notice requirements were satisfied without objection including by Petitioner's brother. (Petition, ¶¶ 31-32.)

On November 12, 2025, Petitioner sent a certified letter to Rob Fredericks (Fredericks), who is the Executive Director of the Housing Authority. (Petition, ¶¶ 10, 41.) On November 18, 2025, Fredericks issued a formal and final denial (the Denial) stating that Petitioner was labeled a "live-in attendant" and was not a program participant; that there was no reasonable accommodation available to Petitioner; and refusing to vacate the 2023 Agreement. (Petition, ¶¶ 41, 55.) Because the Denial failed to provide or omitted the mandatory notice required by Code of Civil Procedure, section 1094.6, subdivision (f), the 90-day statute of limitations did not begin to run. (Petition, ¶ 44.)

Respondents also breached their duty by failing to provide Petitioner with an informal hearing or administrative remedy to contest the reclassification following the Denial. (Petition, ¶ 56.)

Petitioner has been forced to pay monthly market-rate rent of \$2,398 from October 2024 through December 2024; of \$2,655 throughout 2025; and is currently paying over \$2,763. (Petition, ¶ 39.) Petitioner's income was limited to state disability benefits that expired on March 21, 2026, and Petitioner's current income is zero dollars. (Ibid.) Without the restoration of Petitioner's "Remaining Family Member" status and the corresponding subsidy, Petitioner will be unable to meet housing obligations once disability benefits cease, leading to certain eviction and justifying a stay of administrative action pursuant to Code of Civil Procedure, section 1094.5, subdivision (g). (Petition, ¶ 40.)

Though Petitioner filed a formal complaint with the Office of Fair Housing and Equal Opportunity (FHEO) on December 24, 2025, FHEO failed to initiate an intake interview or provide relief. (Petition, ¶ 42.) Because the administrative process is unresponsive and the head of the agency has personally denied Petitioner's rights, judicial intervention is Petitioner's only remaining remedy. (Ibid.)

Petitioner filed their verified petition against the Housing Authority and Fredericks (collectively, Respondents) on April 9, 2026, for a writ of mandate pursuant to Code of Civil Procedure sections 1085 and 1094.5. The petition also asserts causes of action against Respondents for violation of constitutional due process, constructive fraud, and declaratory relief, and seeks a refund of all rent payments made by Petitioner from October 1, 2024, to the present.

On May 12, 2026, Petitioner filed an ex parte application (the Application) for an order staying the administrative decision of Respondents reflected in the Denial; restoring Petitioner's status and housing subsidy for the Residence; and enjoining Respondents from initiating any eviction action. The Application was made on the grounds that Respondents failed to perform a non-discretionary duty to exclude Petitioner's IHSS income from household rent calculations; that the 2023 Agreement is void and purports to waive non-waivable public rights; because Petitioner faces imminent homelessness; and because a stay is consistent with the public interest. The Application was supported by three separately filed declarations of Petitioner.

On May 13, Respondents filed an opposition to the Application.

On May 14, the Court, after a hearing, entered an order denying the Application, and setting a briefing schedule pursuant to which Respondent was required to file a response to the petition by June 5, with Petitioner's reply due on June 15. Further, the Court set the matter for hearing on June 24, 2026.

On June 1, Petitioner filed a supplemental declaration in support of the petition.

On June 5, Respondents filed a response to the petition which is supported by a declaration of Fredericks.

On June 15, Petitioner filed a reply to the response of Respondents, which is supported by Petitioner's supplemental declaration.

Analysis

The petition seeks a writ of mandate directing or compelling Respondents to vacate their "Live-in-Attendant" reclassification of Petitioner; to recognize or restore Petitioner's status as a "Remaining Family Member" under 24 Code of Federal Regulations part 982.315; and to restore Petitioner's purportedly vested housing subsidy as the sole successor to the housing voucher of Vadas, among other things. The petition also seeks an order setting aside the Denial on the grounds that it is not supported by the weight of the evidence, and that Respondents abused their discretion and failed to provide a fair trial. (See Petition, ¶¶ 47-48, 50-51, & 80.)

The petition asserts that the Court "must exercise its independent judgment in reviewing the administrative record pursuant to Code of Civil Procedure [s]ection 1094.5[, subdivision] (c)." (Petition, ¶ 16.)

Code of Civil Procedure section 1085 provides: "A writ of mandate may be issued by any Court to any inferior tribunal, corporation, board, or person, to compel the performance of an act which the law specially enjoins, as a duty resulting from an office, trust, or station, or to compel the admission of a party to the use and enjoyment of a right or office to which the party is entitled, and from which the party is unlawfully precluded by that inferior tribunal, corporation, board, or person." (Code Civ. Proc., § 1085, subd. (a).) "The writ must be issued in all cases where there is not a plain, speedy, and adequate remedy, in the ordinary course of law. It must be issued upon the verified petition of the party beneficially interested." (Code Civ. Proc., § 1086.)

Relevant here, "[w]here the writ is issued for the purpose of inquiring into the validity of any final administrative order or decision made as the result of a proceeding in which by law a hearing is required to be given, evidence is required to be taken, and discretion in the determination of facts is vested in the inferior tribunal, corporation, board, or officer, the case shall be heard by the Court sitting without a jury. All or part of the record of the proceedings before the inferior tribunal, corporation, board, or officer may be filed with the petition, may be filed with Respondent's points and authorities, or may be ordered to be filed by the Court. Except when otherwise prescribed by statute, the cost of preparing the record shall be borne by the Petitioner." (Code Civ. Proc., § 1094.5, subd. (a).)

Court records reflect that the administrative record ostensibly at issue in these proceedings was not filed with the petition, which does not include any exhibits. Though the memorandum filed by Petitioner in support of the petition asserts that the Court must exercise its independent judgment in reviewing the administrative record, the exhibits to that memorandum, and the index to those exhibits, do not appear to include a complete copy of the record of any proceedings ostensibly at issue here.

The Court has also reviewed the declarations and supplemental declarations filed by Petitioner in support of the petition, including the supplemental declarations filed on June 1 and 15, 2026. Those declarations also do not include an administrative record.

In addition, the petition and the memorandum filed in support of the petition present no information, evidence, or reasoned argument showing why an administrative record does not exist, why the Court is not required to review any administrative record, or why an exception to the general rule further discussed above applies under the circumstances present here. Petitioner also presents no information or evidence showing why the complete administrative record of which Petitioner seeks review was filed with the Court.

The response of Respondents to the petition, which is supported by a declaration of Fredericks, also does not include an administrative record, and includes no information or evidence showing why an administrative record does not exist. Instead, that response asserts that on February 1, 2023, Vadas' Section 8 Housing Choice voucher was transferred to Petitioner's address; that Petitioner lived rent free pursuant to the terms of the 2023 Agreement; that Petitioner's actions entitled Petitioner to earn an income through the IHSS program; that Petitioner was never classified as a "family member" or "household member" of Vadas; and that the Housing Authority responded to Petitioner's November 12, 2025, letter on November 18, 2025. (Response at pp. 2-3, 5 [arguing that Petitioner lacks standing].)

In an administrative mandamus action, "[c]ourt review 'is limited to issues in the record at the administrative level.' [Citation.]" (Manufactured Home Communities, Inc. v. County of San Luis Obispo (2008) 167 Cal.App.4th 705, 715.) "The general rule is that a hearing on a writ of administrative mandamus is conducted solely on the record of the proceeding before the administrative agency." (Toyota of Visalia, Inc. v. New Motor Vehicle Bd. (1987) 188 Cal.App.3d 872, 881.) "Generally, '[i]n a section 1094.5 proceeding, it is the responsibility of the Petitioner to produce a sufficient record of the administrative proceedings; "... otherwise the presumption of regularity will prevail.... [Citations.]" ' [Citation.]" (Weinberg v. Cedars-Sinai Medical Center (2004) 119 Cal.App.4th 1098, 1107.)

For the reasons discussed above, the status of production of the administrative record in this matter is presently unclear. Therefore, the Court will continue the hearing on the petition to allow sufficient time for the production and filing of the administrative record by Petitioner. To the extent either Petitioner or Respondents contend that the production of an administrative record has been made or is not required in these proceedings, that party shall file and serve, in advance of the continued hearing, a supplemental brief explaining, with reasoned argument, why the production of an administrative record has been made or is not required. The parties shall not, apart from the administrative record or the supplemental briefing described herein and absent further Court order, file any further papers in support of or in opposition to the petition.

Judges

Judge Thomas Anderle

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